

Noncombatant Immunity and Military Necessity

The Status of Individuals

The first principle of the war convention is that, once war has begun, soldiers are subject to attack at any time (unless they are wounded or captured). And the first criticism of the convention is that this principle is unfair; it is an example of class legislation. It does not take into account that few soldiers are wholeheartedly committed to the business of fighting. Most of them do not identify themselves as warriors; at least, that is not their only or their chief identity; nor is fighting their chosen occupation. Nor, again, do they spend most of their time fighting; they neglect war whenever they can. I want to turn now to a recurrent incident in military history in which soldiers, simply by not fighting, appear to regain their right to life. In fact, they do not regain it, but the appearance will help us understand the grounds on which the right is held, and the facts of the case will clarify the meaning of its forfeiture.

Naked Soldiers

The same tale appears again and again in war memoirs and in letters from the front. It has this general form: a soldier on patrol or on sniper duty catches an enemy soldier unaware, holds him in

Noncombatant Immunity and Military Necessity

his gunsight, easy to kill, and then must decide whether to shoot him or let the opportunity pass. There is at such moments a great reluctance to shoot—not always for moral reasons, but for reasons that are relevant nonetheless to the moral argument I want to make. No doubt, a deep psychological uneasiness about killing plays a part in these cases. This uneasiness, in fact, has been offered as a general explanation of the reluctance of soldiers to fight at all. In the course of a study of combat behavior in World War II, S. L. A. Marshall discovered that the great majority of men on the front line never fired their guns.¹ He thought this the result above all of their civilian upbringing, of the powerful inhibitions acquired in its course against deliberately injuring another human being. But in the cases I shall list, this inhibition does not seem a critical factor. None of the five soldiers who wrote the accounts was a “non-firer,” nor, so far as I can tell, were the other men who figure importantly in their stories. Moreover, they give reasons for not killing or for hesitating to kill, and this the soldiers interviewed by Marshall were rarely able to do.

1) I have taken the first case from a letter written by the poet Wilfred Owen to his brother in England on May 14, 1917.²

When we were marching along a sunken road, we got the wind up once. We knew we must have passed the German outposts somewhere on our left rear. All at once, the cry rang down, “Line the bank.” There was a tremendous scurry of fixing bayonets, tugging of breech covers, and opening pouches, but when we peeped over, behold a solitary German, haring along toward us, with his head down and his arms stretched in front of him, as if he were going to take a high dive through the earth (which I have no doubt he would like to have done). Nobody offered to shoot him, he looked too funny . . .

Perhaps everyone was waiting for an order to shoot, but Owen’s meaning is undoubtedly that no one wanted to shoot. A soldier who looks funny is not at that moment a military threat; he is not a fighting man but simply a man, and one does not kill men. In this case, indeed, it would have been superfluous to do so: the comical German was soon taken prisoner. But that is not always possible, as the remaining cases suggest, and the reluctance or refusal to kill has nothing to do with the existence of a military alternative. There is always a nonmilitary alternative.

2) In his autobiography *Good-bye to All That*, Robert Graves recalls the only time that he “refrained from shooting a German” who was neither wounded nor a prisoner.³

While sniping from a knoll in the support line, where we had a concealed loop-hole, I saw a German, about seven hundred yards away, through my telescopic sights. He was taking a bath in the German third line. I disliked the idea of shooting a naked man, so I handed the rifle to the sergeant with me. "Here, take this. You're a better shot than I am." He got him; but I had not stayed to watch.

I hesitate to say that what is involved here is a moral feeling, certainly not a moral feeling that is conceived to extend across class lines. But even if we describe it as the disdain of an officer and a gentleman for conduct that appears to be unmanly or unheroic, Graves's "dislike" still depends upon a morally important recognition. A naked man, like a funny man, is not a soldier. And what if the obedient and presumably unfeeling sergeant had not been with him?

3) During the Spanish Civil War, George Orwell had a similar experience as a sniper working from a forward position in the republican lines. It would probably never have occurred to Orwell to hand his gun down the hierarchy of ranks; in any case, his was an anarchist battalion, and there was no hierarchy.⁴

At this moment a man, presumably carrying a message to an officer, jumped out of the trench and ran along the top of the parapet in full view. He was half-dressed and was holding up his trousers with both hands as he ran. I refrained from shooting at him. It is true that I am a poor shot and unlikely to hit a running man at a hundred yards . . . Still, I did not shoot partly because of that detail about the trousers. I had come here to shoot at "Fascists;" but a man who is holding up his trousers isn't a "Fascist," he is visibly a fellow-creature, similar to yourself, and you don't feel like shooting at him.

Orwell says, "you don't feel like" rather than "you should not," and the difference between these two is important. But the fundamental recognition is the same as in the other cases and more fully articulated. Moreover, Orwell tells us that this "is the kind of thing that happens all the time in wars," though with what evidence he says that, and whether he means that one doesn't feel like shooting or that one doesn't shoot "all the time," I don't know.

4) Raleigh Trevelyan, a British soldier in World War II, has published a "diary of Anzio" in which he recounts the following episode.⁵

There was a wonderfully vulgar sunrise. Everything was the color of pink geraniums, and birds were singing. We felt like Noah must have done when he saw his rainbow. Suddenly Viner pointed across the

Noncombatant Immunity and Military Necessity

stretch of scrubby heath. An individual, dressed in German uniform, was wandering like a sleep-walker across our line of fire. It was clear that for the moment he had forgotten war and—as we had been doing—was reveling in the promise of warmth and spring. “Shall I bump him off?” asked Viner, without a note of expression in his voice. I had to decide quickly. “No,” I replied, “just scare him away.”

Here, as in the Orwell passage, the crucial feature is the discovery of a man “similar to yourself,” doing “as we had been doing.” Of course, two soldiers shooting at one another are quite precisely similar; one is doing what the other is doing, and both are engaged in what can be called a peculiarly human activity. But the sense of being a “fellow-creature” depends for obvious reasons upon a different sort of identity, one that is entirely dissociated from anything threatening. The fellowship of spring (reveling in the sun) is a good example, though even that is not untouched by the pressures of “military necessity.”

Only Sergeant Chesteron didn’t laugh. He said that we should have killed the fellow, since his friends would now be told precisely where our trenches were.

Sergeants seem to bear much of the burden of war.

5) The most reflective of the accounts I have found is by an Italian soldier who fought the Austrians in World War I: Emilio Lussu, later a socialist leader and anti-fascist exile. Lussu, then a lieutenant, together with a corporal, had moved during the night into a position overlooking the Austrian trenches. He watched the Austrians having morning coffee and felt a kind of amazement, as if he had not expected to find anything human in the enemy lines.⁶

Those strongly defended trenches, which we had attacked so many times without success had ended by seeming to us inanimate, like desolate buildings uninhabited by men, the refuge only of mysterious and terrible beings of whom we knew nothing. Now they were showing themselves to us as they really were, men and soldiers like us, in uniform like us, moving about, talking, and drinking coffee, just as our own comrades behind us were doing at that moment.

A young officer appears and Lussu takes aim at him; then the Austrian lights a cigarette and Lussu pauses. “This cigarette formed an invisible link between us. No sooner did I see its smoke than I wanted a cigarette myself . . .” Behind perfect cover, he has time to think about his decision. He felt the war justified, “a hard necessity.” He recognized that he had obligations to the men under his

command. "I knew it was my duty to fire." And yet he did not. He hesitated, he writes, because the Austrian officer was so entirely oblivious to the danger that threatened him.

I reasoned like this: To lead a hundred, even a thousand, men against another hundred, or thousand, was one thing; but to detach one man from the rest and say to him, as it were: "Don't move, I'm going to shoot you. I'm going to kill you"—that was different . . . To fight is one thing, but to kill a man is another. And to kill him like that is to murder him.

Lussu, like Graves, turned to his corporal but (perhaps because he was a socialist) with a question, not an order. "Look here—I'm not going to fire on a man alone, like that. Will you?" . . . "No, I won't either." Here the line has been clearly drawn between the member of an army who makes war together with his comrades and the individual who stands alone. Lussu objected to stalking a human prey. What else, however, does a sniper do?

It is not against the rules of war as we currently understand them to kill soldiers who look funny, who are taking a bath, holding up their pants, reveling in the sun, smoking a cigarette. The refusal of these five men, nevertheless, seems to go to the heart of the war convention. For what does it mean to say that someone has a right to life? To say that is to recognize a fellow creature, who is not threatening me, whose activities have the savor of peace and camaraderie, whose person is as valuable as my own. An enemy has to be described differently, and though the stereotypes through which he is seen are often grotesque, they have a certain truth. He alienates himself from me when he tries to kill me, and from our common humanity. But the alienation is temporary, the humanity imminent. It is restored, as it were, by the prosaic acts that break down the stereotypes in each of the five stories. Because he is funny, naked, and so on, my enemy is changed, as Lussu says, into a man. "A man!"

The case might be different if we imagine this man to be a wholehearted soldier. In his bath, smoking his morning cigarette, he is thinking only of the coming battle and of how many of his enemies he will kill. He is engaged in war-making just as I am engaged in writing this book; he thinks about it all the time or at the oddest moments. But this is an unlikely picture of an ordinary soldier. War is not in fact his enterprise, but rather surviving this battle, avoiding the next. Mostly, he hides, is frightened, doesn't

Noncombatant Immunity and Military Necessity

fire, prays for a minor wound, a voyage home, a long rest. And when we see him at rest, we assume that he is thinking of home and peace, as we would be. If that is so, how can it be justified to kill him? Yet it is justified, as most of the soldiers in the five stories understand. Their refusals seem, even to them, to fly in the face of military duty. Rooted in a moral recognition, they are nevertheless more passionate than principled decisions. They are acts of kindness, and insofar as they entail any danger at all or lower minutely the odds for victory later, they may be likened to superogatory acts. Not that they involve doing more than is morally required; they involve doing less than is permitted.

The standards of permissibility rest on the rights of individuals, but they are not precisely defined by those rights. For definition is a complex process, historical as well as theoretical in character, and conditioned in a significant way by the pressure of military necessity. It is time now to try to see what that pressure can and cannot do, and the "naked soldier" cases provide a useful instance. In the nineteenth century, an effort was made to protect one type of "naked soldier": the man on guard duty outside his post or at the edge of his lines. The reasons given for singling out this lone figure are similar to those expressed in the five stories. "No other term than murder," wrote an English student of war, "expresses the killing of a lone sentry by a pot shot at long range. It [is] like shooting a partridge sitting."⁷ The same idea is obviously at work in the code of military conduct that Francis Lieber drafted for the Union Army in the American Civil War: "Outposts, sentinels, pickets are not to be fired upon, except to drive them in . . ."⁸ Now, a war is easily imaginable in which this idea was extended, so that only soldiers actually fighting, hundreds against hundreds, thousands against thousands, as Lussu says, could be attacked. Such a war would be constituted as a series of set battles, formally or informally announced in advance, and broken off in some clear fashion. The pursuit of a defeated army could be allowed, so neither side need be denied the possibility of a decisive victory. But perpetual harassment, sniping, ambush, surprise attack—all these would be ruled out. Wars have indeed been fought in this way, but the arrangements have never been stable, because they give a systematic advantage to the army that is larger and better equipped. It is the weaker side that persistently refuses to fix any limits on the vulnerability of enemy soldiers (the extreme form of this refusal is guerrilla war), pleading military necessity. What does this mean?

The Nature of Necessity (1)

The plea takes a standard form. This or that course of action, it is said, "is necessary to compel the submission of the enemy with the least possible expenditure of time, life, and money."⁹ That is the core of what the Germans call *kriegsraison*, reason of war. The doctrine justifies not only whatever is necessary to win the war, but also whatever is necessary to reduce the risks of losing, or simply to reduce losses or the likelihood of losses in the course of the war. In fact, it is not about necessity at all; it is a way of speaking in code, or a hyperbolical way of speaking, about probability and risk. Even if one grants the right of states and armies and individual soldiers to reduce their risks, a particular course of action would be *necessary* to that end only if no other course improved the odds of battle at all. But there will always be a range of tactical and strategic options that conceivably could improve the odds. There will be choices to make, and these are moral as well as military choices. Some of them are permitted and some ruled out by the war convention. If the convention did not discriminate in this way, it would have little impact upon the actual fighting of wars and battles; it would simply be a code of expediency—which is what Sidgwick's twofold rule is likely to come to, under the pressure of actual warfare.

"Reason of war" can only justify the killing of people we already have reason to think are liable to be killed. What is involved here is not so much a calculation of probability and risk as a reflection on the status of the men and women whose lives are at stake. The case of the "naked soldier" is resolved in this way: soldiers as a class are set apart from the world of peaceful activity; they are trained to fight, provided with weapons, required to fight on command. No doubt, they do not always fight; nor is war their personal enterprise. But it is the enterprise of their class, and this fact radically distinguishes the individual soldier from the civilians he leaves behind.* If he is warned that he is always in danger, it is not so

* In his moving account of the French defeat in 1940, Marc Bloch has criticized this distinction: "Confronted by the nation's peril and by the duties that it lays on every citizen, all adults are equal and only a curiously warped mind would claim for any of them the privilege of immunity. What, after all, is a 'civilian' in time of war? He is nothing more than a man whose weight of years, whose health, whose profession . . . prevents him from bearing arms effectively . . . Why should [these factors] confer on him the right to escape from the common danger?" (*Strange*

Noncombatant Immunity and Military Necessity

great a disruption of his life as it would be in the case of the civilian. Indeed, to warn the civilian is in effect to force him to fight, *but the soldier has already been forced to fight*. That is, he has joined the army because he thinks his country must be defended, or he has been conscripted. It is important to stress, however, that he has not been forced to fight by a direct attack upon his person; that would repeat the crime of aggression at the level of the individual. He can be personally attacked only because he already is a fighter. He has been made into a dangerous man, and though his options may have been few, it is nevertheless accurate to say that he has allowed himself to be made into a dangerous man. For that reason, he finds himself endangered. The actual risks he lives with may be reduced or heightened: here notions of military necessity, and also of kindness and magnanimity, have free play. But the risks can be raised to their highest pitch without violating his rights.

It is harder to understand the extension of combatant status beyond the class of soldiers, though in modern war this has been common enough. The development of military technology, it might be said, has dictated it, for war today is as much an economic as a military activity. Vast numbers of workers must be mobilized before an army can even appear in the field; and once they are engaged, soldiers are radically dependent on a continuing stream of equipment, fuel, ammunition, food, and so on. It is a great temptation, then, to attack the enemy army behind its own lines, especially if the battle itself is not going well. But to attack behind the lines is to make war against people who are at least nominally civilians. How can this be justified? Here again, the judgments we make depend upon our understanding of the men and women involved. We try to draw a line between those who have lost their rights because of their warlike activities and those who have not. On the one side are a class of people, loosely called "munitions workers," who make weapons for the army or whose work directly contributes to the business of war. On the other side are all those people who, in the words of the British philosopher G. E. M. Anscombe, "are not fighting and are not engaged in supplying those who are with the means of fighting."¹⁰

Defeat, trans. Gerard Hopkins, New York, 1968, p. 130) But the theoretical problem is not to describe how immunity is gained, but how it is lost. We are all immune to start with; our right not to be attacked is a feature of normal human relationships. That right is lost by those who bear arms "effectively" because they pose a danger to other people. It is retained by those who don't bear arms at all.

The relevant distinction is not between those who work for the war effort and those who do not, but between those who make what soldiers need to fight and those who make what they need to live, like all the rest of us. When it is militarily necessary, workers in a tank factory can be attacked and killed, but not workers in a food processing plant. The former are assimilated to the class of soldiers—partially assimilated, I should say, because these are not armed men, ready to fight, and so they can be attacked only in their factory (not in their homes), when they are actually engaged in activities threatening and harmful to their enemies. The latter, even if they process nothing but army rations, are not similarly engaged. They are like workers manufacturing medical supplies, or clothing, or anything else that would be needed, in one form or another, in peacetime as well as war. An army, to be sure, has an enormous belly, and it must be fed if it is to fight. But it is not its belly but its arms that make it an army. Those men and women who supply its belly are doing nothing peculiarly warlike. Hence their immunity from attack: they are assimilated to the rest of the civilian population. We call them *innocent* people, a term of art which means that they have done nothing, and are doing nothing, that entails the loss of their rights.

This is a plausible line, I think, though it may be too finely drawn. What is more important is that it is drawn under pressure. We begin with the distinction between soldiers engaged in combat and soldiers at rest; then we shift to the distinction between soldiers as a class and civilians; and then we concede this or that group of civilians as the processes of economic mobilization establish its direct contribution to the business of fighting. Once the contribution has been plainly established, only “military necessity” can determine whether the civilians involved are attacked or not. They ought not to be attacked if their activities can be stopped, or their products seized or destroyed, in some other way and without significant risk. The laws of war have regularly recognized this obligation. Under the naval code, for example, merchant seamen on ships carrying military supplies were once regarded as civilians who had, despite the work they were doing, a right not to be attacked, for it was possible (and it sometimes still is) to seize their ships without shooting at them. But whenever seizure without shooting ceases to be possible, the obligation ceases also and the right lapses. It is not a retained but a war right, and rests only on the agreement of states and on the doctrine of military necessity. The history of submarine warfare nicely illustrates this

Noncombatant Immunity and Military Necessity

process, through which groups of civilians are, as it were, incorporated into hell. It will also enable me to suggest the point at which it becomes morally necessary to resist the incorporation.

Submarine Warfare: The Laconia Affair

Naval warfare has traditionally been the most gentlemanly form of fighting, possibly because so many gentlemen went into the navy, but also and more importantly because of the nature of the sea as a battlefield. The only comparable land environment is the desert; these two have in common the absence or relative absence of civilian inhabitants. Hence battle is especially pure, a combat between combatants, with no one else involved—just what we intuitively want war to be. The purity is marred, however, by the fact that the sea is extensively used for transport. Warships encounter merchant ships. The rules governing this encounter are, or were, fairly elaborate.¹¹ Worked out before the invention of the submarine, they bear the marks of their technological as well as their moral assumptions. A merchant ship carrying military supplies could lawfully be stopped on the high seas, boarded, seized, and brought into port by a prize crew. If the merchant seamen resisted this process at any stage, whatever force was necessary to overcome the resistance was also lawful. If they submitted peacefully, no force could be used against them. If it was impossible to bring the ship into port, it could be sunk. “subject to the absolute duty of providing for the safety of the crew, passengers, and papers.” Most often, this was done by taking all three on board the warship. The crew and passengers were then to be regarded not as prisoners of war, for their encounter with the warship was not a battle, but as civilian internees.

Now, in World War I, submarine commanders (and the state officials who commanded them) openly refused to act in accordance with this “absolute duty,” pleading military necessity. They could not surface before firing their torpedoes, for their ships were lightly armed above decks and highly vulnerable to ramming; they could not provide prize crews from their own small number, unless they, too, were to return to port; nor could they take merchant seamen on board, for there was no room. Hence their policy was to “sink on sight,” though they did accept some responsibility to assist survivors after the ship was down. “Sink on sight” was especially the policy of the German government. The only alternative, its defenders have argued, was not to use submarines at all, or to use them ineffectively, which would have conceded control of the

sea to the British navy. After the war was over, perhaps because the Germans lost it, the traditional rules were reaffirmed. The London Naval Protocol of 1936, ratified by all the major participants in the last and the next great war (by the Germans in 1939), explicitly provided that "in their action with regard to merchant ships, submarines must conform to the rules of international law to which surface ships are subject." This is still the "binding rule," according to respected authorities on naval law, though anyone who defends the rule must do so "notwithstanding the experience of the Second World War."¹²

We can best gain access to this experience by turning immediately to the famous "*Laconia* order" issued by Admiral Doenitz of the German U-boat command in 1942. Doenitz required not only that submarines strike without warning, but also that they do nothing whatsoever to help the crew members of a sunken ship: "All attempts to rescue the crews of sunken ships should cease, including picking up men from the sea, righting capsized lifeboats, and supplying food and water."¹³ This order provoked great indignation at the time, and after the war its promulgation was among the crimes with which Doenitz was charged at Nuremberg. But the judges refused to convict on this charge. I want to look closely at the reasons for their decision. Since their language is obscure, however, I shall also ask what their reasons might have been and what reasons we might have for requiring or not requiring rescue at sea.

The issue clearly was rescue and nothing else; despite the "binding rule" of international law, the policy of "sink on sight" was not challenged by the court. The judges apparently decided that the distinction between merchant ships and warships no longer made much sense.¹⁴

Shortly after the outbreak of the war, the British Admiralty . . . armed its merchant vessels, in many cases convoyed them with armed escort, gave orders to send position reports upon sighting submarines, thus integrating merchant vessels into the warning system of naval intelligence. On October 1, 1939, the Admiralty announced [that] British merchant ships had been ordered to ram U-boats if possible.

At this point, the court seemed to reason, merchant seamen had been conscripted for military service; hence it was permissible to attack them by surprise exactly as if they were soldiers. But this argument, by itself, is not a very good one. For if the conscription of merchant seamen was a response to illegitimate submarine attacks (or even to the strong probability of such attacks), it cannot

Noncombatant Immunity and Military Necessity

be invoked to justify those same attacks. It must be the case that the "sink on sight" policy was justified in the first place. The invention of the submarine had made it "necessary." The old rules were morally if not legally suspended because supply by sea—a military enterprise whose participants had always been liable to attack—had ceased now to be subject to nonviolent interdiction.

The "*Laconia* order" reached much further than this, however, for it suggested that seamen helpless in the sea, unlike wounded soldiers on land, need not be helped once the battle was over. Doenitz's argument was that the battle, in fact, was never over until the submarine was safe in its home port. The sinking of a merchant vessel was only the first blow of a long and tense struggle. Radar and the airplane had turned the wide seas into a single battlefield, and unless the submarine immediately began evasive maneuvers, it was or might be in great trouble.¹⁶ Seamen had once been better off than soldiers, a privileged class of near-combatants treated as if they were civilians; now, suddenly, they were worse off.

Here again is the argument from military necessity, and again we can see that it is above all an argument about risk. The lives of the submarine crew would be endangered, Doenitz claimed, and the probability of detection and attack increased by this or that extent, if they attempted to rescue their victims. Now, this is clearly not always the case: in his account of the destruction of an allied convoy in the Arctic Sea, David Irving describes a number of incidents in which German submarines surfaced and offered assistance to merchant seamen in lifeboats without increasing their own risks.¹⁶

Lieutenant-Commander Teichert's U-456 . . . had fired the striking torpedoes. Teichert took his submarine alongside the lifeboats and ordered the Master, Captain Strand, to come aboard; he was taken prisoner. The seamen were asked whether they had sufficient water and they were handed tinned meat and bread by the submarine officers. They were told that they would be picked up by destroyers a few days later.

This occurred only a few months before Doenitz's order prohibited such assistance, and under conditions which made it perfectly safe. Convoy PQ 17 had dispersed, abandoned by its escorts; it was no longer in any sense a fighting force; the Germans controlled the air as well as the sea. The battle was clearly over, and military necessity could hardly have justified a refusal to help. I should think that if such a refusal, under similar circumstances, could be attributed to the "*Laconia* order," Doenitz would indeed be

guilty of a war crime. But nothing like this was demonstrated at Nuremberg.

Nor, however, did the court openly adopt the argument from military necessity: that under different circumstances the refusal to help was justified by the risks it entailed. Instead, the judges reaffirmed the binding rule. "If the Commander cannot rescue," they argued, "then . . . he cannot sink a merchant vessel . . ." But they did not enforce the rule and punish Doenitz. Admiral Nimitz of the U.S. Navy, called to testify by Doenitz's attorney, had told them that "U.S. submarines [generally] did not rescue enemy survivors if by so doing the vessels were exposed to unnecessary or additional risk." British policy had been similar. In view of this, the judges declared that "the sentence of Doenitz is not assessed on the ground of his breaches of the international law of submarine warfare."¹⁷ They did not accept the argument of the defense attorneys that the law had effectively been rewritten by informal collusion among the belligerents. But they apparently felt that this collusion did make the law unenforceable (or at least unenforceable against only one of the parties to its violation)—a proper judicial decision, but one that leaves open the moral question.

In fact, Doenitz and his allied counterparts had reasons for the policy they adopted, and these reasons fit roughly into the framework of the war convention. Wounded or helpless combatants are no longer subject to attack; in that sense they have regained their right to life. But they are not entitled to assistance so long as the battle continues and the victory of their enemies is uncertain. What is decisive here is not military necessity but the assimilation of merchant seamen to the class of combatants. Soldiers need not risk their lives for the sake of their enemies, for both they and their enemies have exposed themselves to the coerciveness of war. There are some people, however, who are safe against that coerciveness, or who ought to be safeguarded against it, and these people also have a part in the *Laconia* affair.

The *Laconia* was a liner carrying 268 British servicemen and their families, returning home from pre-war stations in the Middle East, and 1,800 Italian prisoners of war. It was torpedoed and sunk off the west coast of Africa by a U-boat whose commander did not know who its passengers were (liners were used extensively by the Allies as troopships). When Doenitz learned of the sinking, and of the identity of the people in the water, he ordered a massive rescue effort involving, initially, a number of other submarines.¹⁸ Italian warships were also asked to hurry to the scene, and the

Noncombatant Immunity and Military Necessity

U-boat commander responsible for the sinking radioed in English a general call for help. But the submarines were instead attacked by several Allied planes whose pilots presumably did not know what was going on in the seas below or did not believe what they were told. The confusion is typical enough in time of war: ignorance on all sides, compounded by mutual fear and suspicion.

In fact, the planes did little damage, but Doenitz's response was harsh. He directed the German commanders to confine their rescue efforts to the Italian prisoners; the British soldiers and their families were to be set adrift. It was this spectacle of women and children abandoned at sea, and the subsequent order that seemed to require its repetition, that was widely thought to be outrageous—and rightly so, it seems to me, even though “unrestricted” submarine warfare was by then commonly accepted. For we draw a circle of rights around civilians, and soldiers are supposed to accept (some) risks in order to save civilian lives. It is not a question of going out of their way or of being, or not being, good samaritans. They are the ones who endanger civilian lives in the first place, and even if they do this in the course of legitimate military operations, they must still make some positive effort to restrict the range of the damage they do. This indeed was Doenitz's own position before the Allied attack, a position he maintained despite criticism from other members of the German High Command: “I cannot put these people into the water. I shall carry on [the rescue effort].” It is not kindness that is involved here, but duty, and it is in terms of that duty that we judge the “*Laconia* order”. A rescue effort undertaken for the sake of noncombatants can be broken off temporarily because of an attack, but it cannot be called off in advance of any attack merely because an attack may occur (or recur). For one attack at least has already occurred and put innocent people in danger of death. Now they must be helped.

Double Effect

The second principle of the war convention is that noncombatants cannot be attacked at any time. They can never be the objects or the targets of military activity. But as the *Laconia* affair suggests, noncombatants are often endangered not because anyone

sets out to attack them, but only because of their proximity to a battle that is being fought against someone else. I have tried to argue that what is then required is not that the battle be stopped, but that some degree of care be taken not to harm civilians—which means, very simply, that we recognize their rights as best we can within the context of war. But what degree of care should be taken? And at what cost to the individual soldiers who are involved? The laws of war say nothing about such matters; they leave the cruelest decisions to be made by the men on the spot with reference only to their ordinary moral notions or the military traditions of the army in which they serve. Occasionally one of these soldiers will write about his own decisions, and that can be like a light going on in a dark place. Here is an incident from Frank Richards' memoir of the First World War, one of the few accounts by a man from the ranks.¹⁹

When bombing dug-outs or cellars, it was always wise to throw the bombs into them first and have a look around them after. But we had to be very careful in this village as there were civilians in some of the cellars. We shouted down to them to make sure. Another man and I shouted down one cellar twice and receiving no reply were just about to pull the pins out of our bombs when we heard a woman's voice and a young lady came up the cellar steps . . . She and the members of her family . . . had not left [the cellar] for some days. They guessed an attack was being made and when we first shouted down had been too frightened to answer. If the young lady had not cried out when she did, we would have innocently murdered them all.

Innocently murdered, because they had shouted first; but if they had not shouted, and then killed the French family, it would have been, Richards believed, murder simply. And yet he was accepting a certain risk in shouting, for had there been German soldiers in the cellar, they might have scrambled out, firing as they came. It would have been more prudent to throw the bombs without warning, which means that military necessity would have justified him in doing so. Indeed, he would have been justified on other grounds, too, as we shall see. And yet he shouted.

The moral doctrine most often invoked in such cases is the principle of double effect. First worked out by Catholic casuists in the Middle Ages, double effect is a complex notion, but it is at the same time closely related to our ordinary ways of thinking about moral life. I have often found it being used in military and political debates. Officers will tend to speak in its terms, knowingly or unknowingly, whenever the activity they are planning is likely

Noncombatant Immunity and Military Necessity

to injure noncombatants. Catholic writers themselves frequently use military examples; it is one of their purposes to suggest what we ought to think when "a soldier in firing at the enemy foresees that he will shoot some civilians who are nearby."²⁰ Such foresight is common enough in war; soldiers could probably not fight at all, except in the desert and at sea, without endangering nearby civilians. And yet it is not proximity but only some contribution to the fighting that makes a civilian liable to attack. Double effect is a way of reconciling the absolute prohibition against attacking noncombatants with the legitimate conduct of military activity. I shall want to argue, following the example of Frank Richards, that the reconciliation comes too easily, but first we must see exactly how it is worked out.

The argument goes this way: it is permitted to perform an act likely to have evil consequences (the killing of noncombatants) provided the following four conditions hold.²¹

- 1) The act is good in itself or at least indifferent, which means, for our purposes, that it is a legitimate act of war.
- 2) The direct effect is morally acceptable—the destruction of military supplies, for example, or the killing of enemy soldiers.
- 3) The intention of the actor is good, that is, he aims only at the acceptable effect; the evil effect is not one of his ends, nor is it a means to his ends.
- 4) The good effect is sufficiently good to compensate for allowing the evil effect; it must be justifiable under Sidgwick's proportionality rule.

The burden of the argument is carried by the third clause. The "good" and evil effects that come together, the killing of soldiers and nearby civilians, are to be defended only insofar as they are the product of a single intention, directed at the first and not the second. The argument suggests the great importance of taking aim in wartime, and it correctly restricts the targets at which one can aim. But we have to worry, I think, about all those unintended but foreseeable deaths, for their number can be large; and subject only to the proportionality rule—a weak constraint—double effect provides a blanket justification. The principle for that reason invites an angry or a cynical response: what difference does it make whether civilian deaths are a direct or an indirect effect of my actions? It can hardly matter to the dead civilians, and if I know in advance that I am likely to kill so many innocent people and go ahead anyway, how can I be blameless?²²

We can ask the question in a more concrete way. Would Frank

Richards have been blameless if he had thrown his bombs without warning? The principle of double effect would have permitted him to do so. He was engaged in a legitimate military activity, for many cellars were in fact being used by enemy soldiers. The effects of making "bomb without warning" his general policy would have been to reduce the risks of his being killed or disabled and to speed up the capture of the village, and these are "good" effects. Moreover, they were clearly the only ones he intended; civilian deaths would have served no purpose of his own. And finally, over an extended period of time, the proportions would probably have worked out favorably or at least not unfavorably; the mischief done would, let us assume, be balanced by the contribution to victory. And yet Richards was surely doing the right thing when he shouted his warning. He was acting as a moral man ought to act; his is not an example of fighting heroically, above and beyond the call of duty, but simply of fighting well. It is what we expect of soldiers. Before trying to state that expectation more precisely, however, I want to see how it works in more complex combat situations.

Bombardment in Korea

I am going to follow here a British journalist's account of the way the American army waged war in Korea. Whether it is an entirely just account I do not know, but I am more interested in the moral issues it raises than in its historical accuracy. This, then, was a "typical" encounter on the road to Pyongyang. A battalion of American troops advanced slowly, without opposition, under the shadow of low hills. "We were well into the valley now, half-way down the straight . . . strung out along the open road, when it came, the harsh stutter of automatic fire sputtering the dust around us."²³ The troops stopped and dove for cover. Three tanks moved up, "pounding their shells into the . . . hillside and shattering the air with their machine guns. It was impossible in this remarkable inferno of sound to detect the enemy, or to assess his fire." Within fifteen minutes, several fighter planes arrived, "diving down upon the hillside with their rockets." This is the new technique of warfare, writes the British journalist, "born of immense productive and material might": "the cautious advance, the enemy small arms fire, the halt, the close support air strike, artillery, the cautious advance, and so on." It is designed to save the lives of soldiers, and it may or may not have that effect. "It is certain that it kills civilian men, women, and children, indiscriminately and in great numbers, and destroys all that they have."

Noncombatant Immunity and Military Necessity

Now there is another way to fight, though it is only open to soldiers who have had a “soldierly” training and who are not “roadbound” in their habits. A patrol can be sent forward to out-flank the enemy position. In the end, it often comes to that anyway, as it did in this case, for the tanks and planes failed to hit the North Korean machine gunners. “At last, after more than an hour . . . a platoon from Baker Company began working their way through the scrub just under the ridge of the hill.” But the first reliance was always on bombardment. “Every enemy shot released a deluge of destruction.” And the bombardment had, or sometimes had, its characteristic double effect: enemy soldiers were killed, and so were any civilians who happened to be nearby. It was not the intention of the officers who called in the artillery and planes to kill civilians; they were acting out of a concern for their own men. And that is a legitimate concern. No one would want to be commanded in wartime by an officer who did not value the lives of his soldiers. But he must also value civilian lives, and so must his soldiers. He cannot save them, because they cannot save themselves, by killing innocent people. It is not just that they can’t kill a lot of innocent people. Even if the proportions work out favorably, in particular cases or over a period of time, we would still want to say, I think, that the patrol must be sent out, the risk accepted, before the big guns are brought to bear. The soldiers sent on patrol can plausibly argue that they never chose to make war in Korea; they are soldiers nevertheless; there are obligations that go with their war rights, and the first of these is the obligation to attend to the rights of civilians—more precisely, of those civilians whose lives they themselves endanger.

The principle of double effect, then, stands in need of correction. Double effect is defensible, I want to argue, only when the two outcomes are the product of a *double intention*: first, that the “good” be achieved; second, that the foreseeable evil be reduced as far as possible. So the third of the conditions listed above can be restated:

- 3) The intention of the actor is good, that is, he aims narrowly at the acceptable effect; the evil effect is not one of his ends, nor is it a means to his ends, and, aware of the evil involved, he seeks to minimize it, accepting costs to himself.

Simply not to intend the death of civilians is too easy; most often, under battle conditions, the intentions of soldiers are focused narrowly on the enemy. What we look for in such cases is some sign

of a positive commitment to save civilian lives. Not merely to apply the proportionality rule and kill no more civilians than is militarily necessary—that rule applies to soldiers as well; no one can be killed for trivial purposes. Civilians have a right to something more. And if saving civilian lives means risking soldier's lives, the risk must be accepted. But there is a limit to the risks that we require. These are, after all, unintended deaths and legitimate military operations, and the absolute rule against attacking civilians does not apply. War necessarily places civilians in danger; that is another aspect of its hellishness. We can only ask soldiers to minimize the dangers they impose.

Exactly how far they must go in doing that is hard to say, and for that reason it may seem odd to claim that civilians have rights in such matters. What can this mean? Do civilians have a right not only not to be attacked but also not to be put at risk to such and such a degree, so that imposing a one-in-ten chance of death on them is justified, while imposing a three-in-ten chance is unjustified? In fact, the degree of risk that is permissible is going to vary with the nature of the target, the urgency of the moment, the available technology, and so on. It is best, I think, to say simply that civilians have a right that "due care" be taken.²⁴ * The case is the same in domestic society: when the gas company works on the lines that run under my street, I have a right that its workmen observe very strict safety standards. But if the work is urgently required by the imminent danger of an explosion on a neighboring street, the standards may be relaxed and my rights not violated. Now, military necessity works exactly like civil emergency, except that in war the standards with which we are familiar in domestic society are always relaxed. That is not to say, however, that there are no standards at all, and no rights involved. Whenever there is likely to be a second effect, a second intention is morally required. We can move some way toward defining the limits of that second intention if we consider two more wartime examples.

* Since judgments of "due care" involve calculations of relative value, urgency, and so on, it has to be said that utilitarian arguments and rights arguments (relative at least to indirect effects) are not wholly distinct. Nevertheless, the calculations required by the proportionality principle and those required by "due care" are not the same. Even after the highest possible standards of care have been accepted, the probable civilian losses may still be disproportionate to the value of the target; then the attack must be called off. Or, more often, military planners may decide that the losses entailed by the attack, even if it is carried out at minimal risk to the attackers, are not disproportionate to the value of the target: then "due care" is an additional requirement.

The Bombing of Occupied France and the Vemork Raid

During World War II, the Free French air force carried out bombing raids against military targets in occupied France. Inevitably, their bombs killed Frenchmen working (under coercion) for the German war effort; inevitably too, they killed Frenchmen who simply happened to live in the vicinity of the factories under attack. This posed a cruel dilemma for the pilots, which they resolved not by giving up the raids or asking someone else to carry them out, but by accepting greater risks for themselves. "It was . . . this persistent question of bombing France itself," says Pierre Mendes-France, who served in the air force after his escape from a German prison, "which led us to specialize more and more in precision bombing—that is, flying at a very low altitude. It was more risky, but it also permitted greater precision . . ." ²⁵ The same factories, of course, could have been (perhaps should have been) attacked by squads of partisans or commandos carrying explosives; their aim would have been perfect, not merely more precise, and no civilians except those working in the factories would have been endangered. But such raids would have been extremely dangerous and the chances of success, and especially of reiterated success, very slim. Risks of that sort were more than the French expected, even of their own soldiers. The limits of risk are fixed, then, roughly at that point where any further risk-taking would almost certainly doom the military venture or make it so costly that it could not be repeated.

There is obviously leeway for military judgment here: strategists and planners will for reasons of their own weigh the importance of their target against the importance of their soldiers' lives. But even if the target is very important, and the number of innocent people threatened relatively small, they must risk soldiers before they kill civilians. Consider, for example, the one case I have found from the Second World War where a commando raid was tried instead of an air attack. In 1943, the heavy water plant at Vemork in occupied Norway was destroyed by Norwegian commandos operating on behalf of the British S.O.E. (Special Operations Executive). It was vitally important to stop the production of heavy water so as to delay the development of an atomic bomb by German scientists. British and Norwegian officials debated whether to make the attempt from the air or on the ground and chose the latter approach because it was less likely to injure civilians.²⁶ But it was very dangerous for the commandos. The first

attempt failed, and thirty-four men were killed in its course; the second attempt, by a smaller number of men, succeeded without casualties—to the surprise of everyone involved, including the commandos. It was possible to accept such risks for a single operation that would not, it was thought, have to be repeated. For a “battle” that extended over time, consisting of many separate incidents, it would not have been possible.

Later in the war, after production was resumed at Vemork and security considerably tightened, the plant was bombed from the air by American planes. The bombing was successful, but it resulted in the deaths of twenty-two Norwegian civilians. At this point, double effect seems to work, justifying the air attack. Indeed, in its unrevised form it would have worked sooner. The importance of the military aim and the actual casualty figures (foreseeable in advance, let us assume) would have justified a bombing raid in the first place. But the special value we attach to civilian lives precluded it.

Now, the same value attaches to the lives of German as to those of French or Norwegian civilians. There are, of course, additional moral as well as emotional reasons for paying that respect and accepting its costs in the case of one’s own people or one’s allies (and it is no accident that my two examples involve attacks on occupied territory). Soldiers have direct obligations to the civilians they leave behind, which have to do with the very purpose of soldiering and with their own political allegiance. But the structure of rights stands independently of political allegiance; it establishes obligations that are owed, so to speak, to humanity itself and to particular human beings and not merely to one’s fellow citizens. The rights of German civilians—who did no fighting and were not engaged in supplying the armed forces with the means of fighting—were no different from those of their French counterparts, just as the war rights of German soldiers were no different from those of French soldiers, whatever we think of their war.

The case of occupied France (or Norway) is, however, complex in another way. Even if the French pilots had reduced their risks and flown at high altitudes, we would not hold them solely responsible for the additional civilian deaths they caused. They would have shared that responsibility with the Germans—in part because the Germans had attacked and conquered France, but also (and more importantly for our immediate purposes) because they had mobilized the French economy for their own strategic ends, forcing French workers to serve the German war machine, turning

Noncombatant Immunity and Military Necessity

French factories into legitimate military targets, and putting the adjacent residential areas in danger. The question of direct and indirect effect is complicated by the question of coercion. When we judge the unintended killing of civilians, we need to know how those civilians came to be in a battle zone in the first place. This is, perhaps, only another way of asking who put them at risk and what positive efforts were made to save them. But it raises issues that I have not yet addressed and that are most dramatically visible when we turn to another, and a much older, kind of warfare.